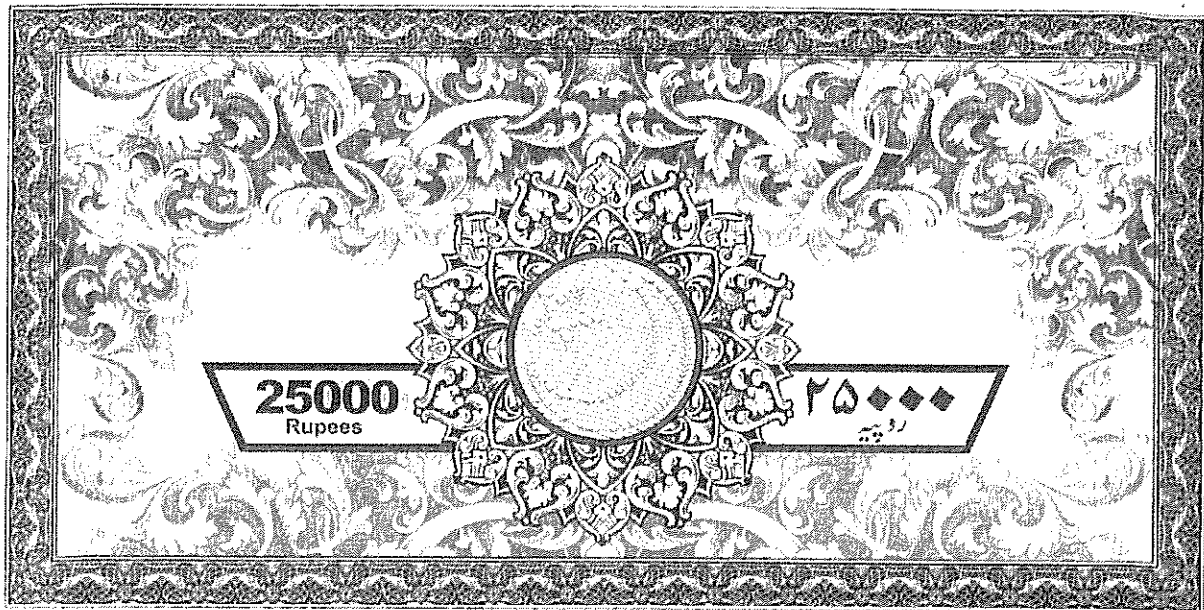




STATE OF PUNJAB, INDIA, KARACHI

(RUPEES TWENTY FIVE THOUSAND ONLY)

25 MAY 2021  
 issued for: CDC  
 account no: 3825260-9  
 on: 09 (in 25/4/21)  
 for the purpose of: 131 (in 25/4/21)  
 for the purpose of: 09 (in 25/4/21)

**AGREEMENT FOR DESIGNING, DEVELOPMENT  
 AND IMPLEMENTATION OF WEB/ CLIENT BASED  
 ORDER MANAGEMENT SYSTEM (OMS)**

This Agreement is made at Karachi on this 5<sup>th</sup> day of April, 2021.

**Between**

**EClear Services Limited**, a company incorporated under the Companies Act, 2017, having its registered office at CDC House, 99-B, Block-"B", S.M.C.H.S, Main Shahrah-e-Faisal, Karachi, acting through its Chief Executive Officer, Mr. Shariq Naseem, (hereinafter referred to as "ESL", which expression shall, wherever the context so permits or requires, mean and include its successors-in-interest and permitted assigns) of the First Part.

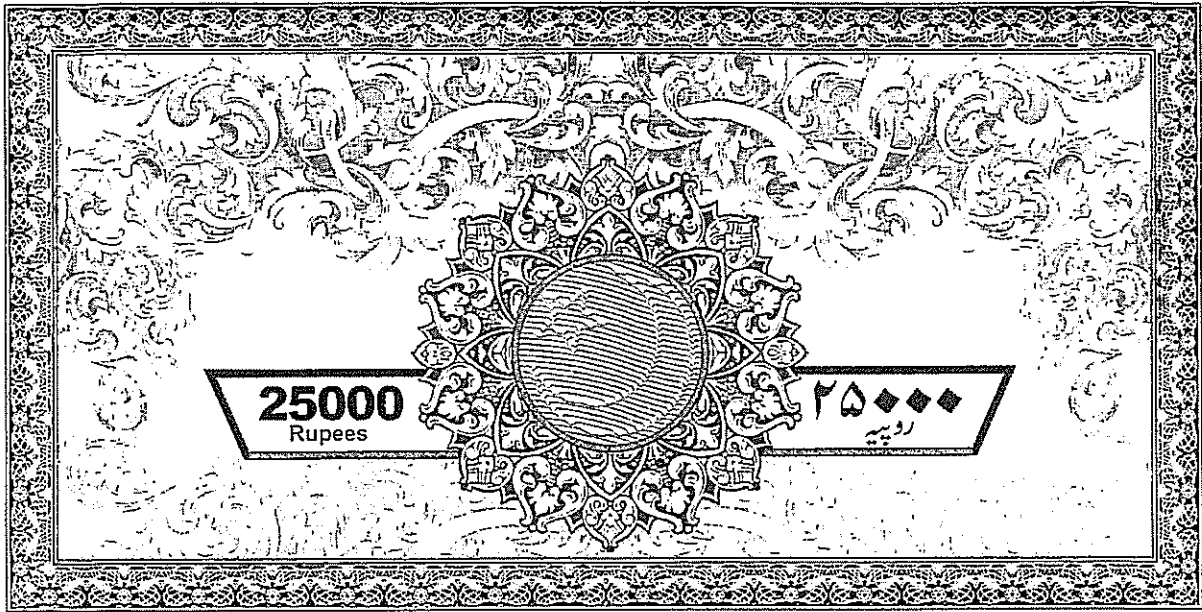
**And**

**Catalyst IT Solutions (Private) Limited**, a company incorporated under the Companies Ordinance, 1984, having its registered office at 403, Al-Rehman Centre, Shahra-e-Faisal, Karachi, acting through its Chief Executive Officer & Director of Business Development, Mr. Humayun Jawaid Syed, (hereinafter referred to as the "Catalyst", which expression shall, where the context so permits or requires, mean and include its successors-in-interest and permitted assigns) of the Second Part.

ESL and Catalyst are hereinafter individually referred to as the "Party" and collectively as the "Parties".



108550



CDC  
 6284-3825260-9  
 09 Dt. 25/3/21  
 131 Dt. 25/3/21  
 09 Dt. 25/3/21

### WHEREAS:

- (i) ESL will act as Professional Clearing Member ("PCM"), offering custodial and clearing/settlement services to its clientele under the Professional Clearing Members Regulations, 2020 and Securities Brokers (Licensing and Operations) Regulations, 2016 vide a web/desktop /mobile base/client based Order Management System ("OMS"), including custody and clearing/settlement of all locked-in trades, risk management and back-office including accounting.
- (ii) Catalyst is an information technology company engaged in the development of software solutions and specialises in providing IT solutions and services to its clients especially in the capital markets of Pakistan and has attained expertise in the development and maintaining web based IT applications and solutions and installing, configuring implementing and maintaining related software.
- (iii) Catalyst has been awarded the contract for Design, Development and Implementation of OMS software/solution and they have agreed to provide the solution as per the requirements outlined in the Request for Proposal (RFP) document dated September 8, 2016 and lately amended vide this Agreement outline in Specification Requirements annexed as Annexure A.

NOW THEREFORE THE PARTIES FOR MUTUAL CONSIDERATION HEREBY AGREE AS FOLLOWS:-

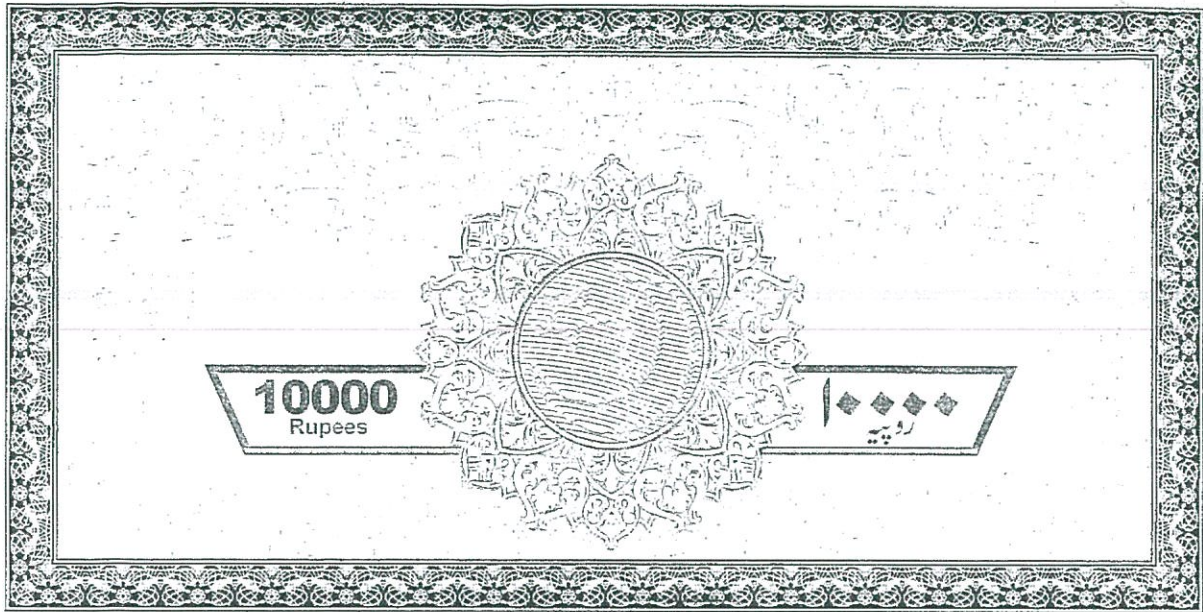
### 1. Article -1: Interpretation:

- 1.1 In this Agreement, the Schedule and the Annexure hereto, unless the context otherwise requires, the following words and expressions shall have the following meanings:-



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Mustafa Farooq  
 CFO & Company Secretary  
 Eclear Services Limited



Rs. Ten Thousand Only

25 MAR 2021

CDC  
 42801.3825260-9  
 04 Dt. 25/3/21  
 13/ Dt. 25/3/21  
 09 Dt. 25/3/21

"Catalyst's Co-ordinator" means a responsible officer deputed by Catalyst to perform the functions indicated in Article 6.3.

"ESL's Co-ordinator" means a responsible officer deputed by ESL to perform the functions indicated in Article 6.2.

"IPR" means Intellectual Property Rights of ESL in the Software.

"Maintenance Period" means the period of five (5) years commencing from the delivery and successful testing of the Software mentioned in Article 8.

"OMS" means a computerized Order Management System, providing for custody and clearing/settlement of all locked-in trades of securities brokers (including but not limited to TREC Holders) and its clients, risk management, compliance function, back-office, standard accounting feature and other related functions.

"PCM" means the Professional Clearing Member, to perform the functions of clearing & settlement for capital market investors.

"PSX" means Pakistan Stock Exchange Limited and shall include its successor-in-interest.

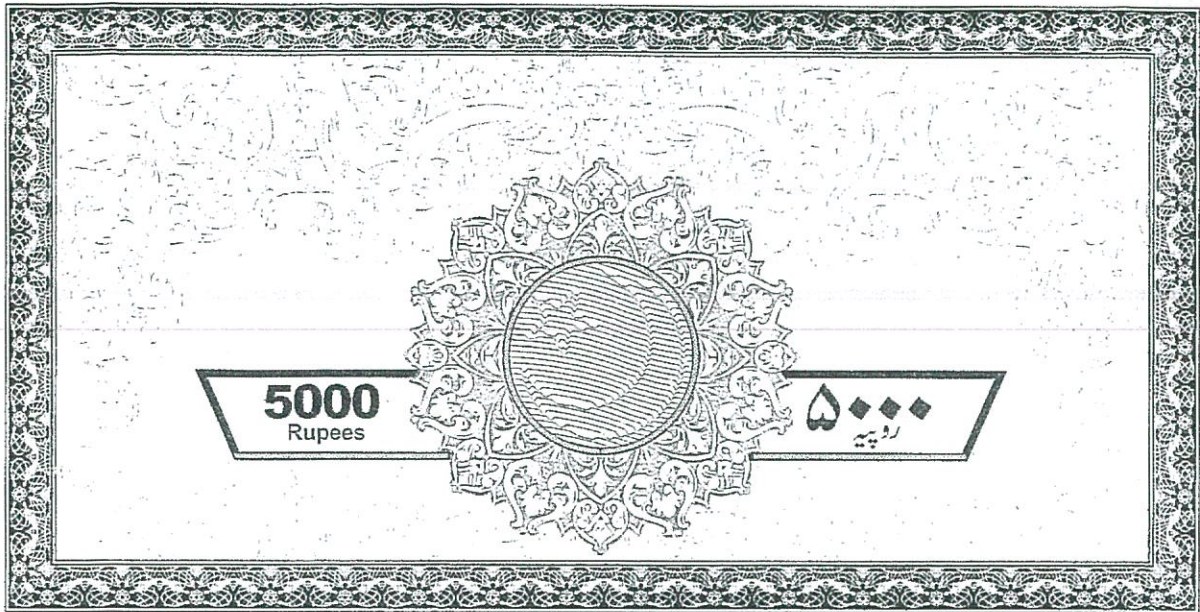
"Regulations" mean the Securities Brokers (Licensing and Operations) Regulations, 2016.

"SECP" means Securities and Exchange Commission of Pakistan and shall include its successor body.

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 CFO & Company Secretary  
 EcLEAR Services Limited





Issued to: S. DC  
 Enclosed No: 0301-3825260-9  
 Date of Issue: 09 DL 25/3/21  
 Date of Receipt: 13/ DL 25/3/21  
 For the purpose of: 09 DL 25/3/21

"Software" means a computer program containing a set of instructions and applications for operating, managing and controlling various functions of OMS to be developed by Catalyst in accordance with the requirements, specifications and technical functionalities enunciated in the Request for Proposal (RFP) published on September 8, 2016 at CDC website, and subsequently amended vide this Agreement outline as Specification Requirement annexed hereto as Annexure A, as an integral part of this Agreement and shall include any subsequent error corrections or updates supplied by Catalyst to ESL pursuant to this Agreement.

"Source Code" means computer instructions (with comments) and software in readable programming language, specially designed by Catalyst for ESL for the implementation and support for OMS in terms of this Agreement.

"TREC Holder" means a member of PSX, having Trading Entitlement Rights Certificate ("TREC") and is registered with the SECP under the Regulations.

Unless the context otherwise requires:-

- (i) words importing the singular number include the plural number, and vice versa;
- (ii) the headings to the Articles hereof shall not be deemed to be a part thereof or be taken in consideration in the interpretation or construction thereof or of this Agreement;
- (iii) references herein to statutes and other legislation include re-enactments and amendments thereof and include any subordinate legislation made under any such statute; and



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- (iv) references herein to a Party include its permitted assigns and its successors-in-interest.

**2. Article-2: Designing, Development and rollout of Web/desktop /mobile base/Client Based IT Application**

2.1 Catalyst shall develop and engineer for CDC/ ESL web/desktop/mobile base/client based IT application for OMS in accordance with the functional specifications and requirements of CDC/ ESL and shall further supply the installation of support software(s) to run the web/client based IT application, the details and technical features of which are according to the Specification Requirement attached as Annexure A.

2.2 Catalyst warrants that web/desktop/mobile base/client based IT application shall be in conformity with the requirements, specifications and technical functionalities enunciated in Specification document and the technical clarifications, as agreed between the parties.

2.3 The main components of the Software for OMS shall be the following:-

- (i) OMS trading platform (including Online/web portal, desktop and mobile base app)
- (ii) Clearing/settlement services for TREC Holders and Clients of TREC Holders.
- (iii) Custodial services for TREC Holders and Clients of TREC Holders.
- (iv) Real time Risk Management of PCM, TREC Holders and Clients of TREC Holders.
- (v) Back-office and accounting functions for PCM and TREC Holders who are clients of the PCM.
- (vi) Trading and settlement life cycle along with reporting and MIS functionalities.
- (vii) Multi-tenant Trading, Risk Management and Back-Office accounting.
- (viii) Confidentiality, integrity and availability.
- (ix) System base clients categorization as per regulation
- (x) System base AML/CFT function
- (xi) Integration with NCCPL for uploading/downloading data in case of MFS/DFS
- (xii) Pre and post Exposure management system
- (xiii) Real time Exposure management like TWS
- (xiv) All uploading and downloading functions in case of Leverage Products
- (xv) Other function/feature as covered in the Specification document

2.4 Web/desktop/mobile base/client based IT application for OMS will be accessible via a web and mobile platforms with alerts such as margin calls in form of SMS alerts/fax/emails and will be accessible to trading terminals installed at clients of ESL.

2.5 ESL acknowledges that if it requests for a material change to the requirements, specifications and technical functionalities which are radically different from those enunciated in Annexure A, such change may result in an extension of time and/or change in the delivery period of the proposed solution/software and may also increase the charges for the software and maintenance services, which will be decided by mutual consent.

**3. Article 3: Integration**

3.1 The Software may be integrated with other financial entities as mentioned in Specification Requirement in a manner that would enable ESL to offer services as a PCM to its clientele.

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- 3.2 ESL shall be responsible for arranging all the required hardware and third party licenses and products which may be required for integration and subsequent operation of the Software. Catalyst shall inform ESL in advance the exact protocols and hardware requirements, bandwidth requirements and technological facilitation arrangement required for establishing and operating the OMS as an integrated system.
- 3.3 Catalyst hereby confirms that the Software shall conform to applicable regulations and shall update the Software to account for any changes in the applicable regulatory guidelines, laws, rules and regulations in so far as these may relate to implementation and operation of OMS. Furthermore, it is also hereby agreed between the Parties that all iterations and alterations to the Software to correct bugs and error and all non-architectural customisations required in the Software shall be made and effectuated by Catalyst for a period of 5 years from the date on which deliverables have been made by Catalyst as given in Article 8 below.
- 3.4 In the event that the Software does not conform in accordance with specifications given in Annexure A, ESL shall give prompt written notice of the existence of such non-compliance/non-performance, and describe in the notice the nature and extent of the fault or error leading to or causing such non-compliance and Catalyst shall remove the cause of non-performance and non-compliance that is not attributable to Catalyst, at no additional charge on priority basis and within earliest possible time.
- 3.5 ESL hereby agrees:
- (i) to ensure ESL uses the Software for PCM only;
  - (ii) to provide (or cause to be provided) adequate hardware, all supporting infrastructure and obtain any third party licenses/products that may be required for the Software to function properly and for the implementation and functioning of OMS at its own cost;
  - (iii) not to sell, rent, sub-license, commercialize or permit the use of the Software whether for any consideration or free of charge to any external third party during the period of Agreement;
  - (iv) to settle any and all claims and disputes that may arise in accordance with the provisions of Article 12 below.

4. **Article 4: Maintenance**

- 4.1 During the period of the Agreement, Catalyst will provide to ESL Software support service either by telephone, email, fax or by personal visit by a Catalyst analyst/programmer for resolving technical or operational problems which may from time to time be encountered with relating to the Software. The Maintenance Period shall commence from the date of confirmation of successful testing of the Software by ESL and end upon the expiry of a period of five (5) years therefrom.
- 4.2 Catalyst may as and when required make improvements to the Software which may arise from experience of its use by ESL and agrees to provide such upgrades fully tested and free from any fault and bugs to ESL free of cost provided that these modifications are compatible with OMS. ESL shall thereafter test the upgrade in a User Acceptance Testing (UAT) environment and shall be responsible to move the same in production environment.
- 4.3 Catalyst will provide free of cost, remedial maintenance in respect of errors, bugs or malfunctions notified by ESL to Catalyst and Catalyst shall use its best endeavour to ensure that such maintenance is provided within a responsible period of time from the notice by ESL. In an event which requires urgent attention and is raised as an urgent

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matter by ESL, Catalyst shall respond and address the same within 2 hours of receiving the notice from ESL. For normal causes and minor bugs, Catalyst will respond and address the issue not later than 24 hours after receiving such notice.

- 4.4 Catalyst will provide ESL within a reasonable of time all faults and corrections, in the form of program updates made by Catalyst from time to time relating to OMS.
- 4.5 The maintenance shall not include the development and implementation of any major changes that may from time to time be required by ESL or the provision of any new software or new software support relating to OMS, which may only be provided by Catalyst to the extent possible and at additional charges to be agreed mutually.
- 4.6 Any major modifications not covered in this Agreement and features which are not specified in Schedule, will be charged at an agreed rate between both Parties, depending on the nature of the assignment. All customisations and alterations to the Software during the 5 year maintenance period shall be undertaken by Catalyst at no extra cost. Such customisations may include changes due to changes in regulatory/statutory requirements or due to changing requirements of ESL.
- 4.7 Notwithstanding anything to the contrary contained elsewhere in this Agreement, major architectural change in the Software or its programming shall not fall within the scope of the maintenance arrangement, and such services shall be chargeable as extras by Catalyst at mutually pre-agreed rates.
- 4.8 It also hereby agreed between the Parties that ESL shall exclusively use the services of Catalyst for all maintenance services during the given 5 year period. Moreover, during the currency of this Agreement, ESL shall use the services of Catalyst only to make any changes to the Software as well (including any changes or alterations to the Source Code). However, subsequently, ESL shall be free to use the services of any other IT professional or company to undertake maintenance services related to the Software (including, but not limited to, making any changes or modifications to the Software).

**5. Article 5: Consideration:**

- 5.1 In consideration of Catalyst developing, maintaining and delivering the Software for OMS and performing its obligation under this Agreement, ESL shall pay to Catalyst a total fee of Rs.18,500,000/- (Rupees Eighteen Million and Five Hundred Thousand only) at the following stages:-

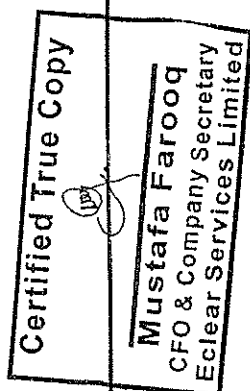
- 5.2 ESL shall be liable to pay all federal, provincial and local taxes, duties and levies of all kinds on payments to be made to Catalyst and on OMS and its operation and shall keep Catalyst indemnified against any claims, demands or notices that may be made or raised against Catalyst by any federal, provincial and local authorities. All payments shall therefore be made to Catalyst without any tax deductions or withholding tax.

6. **Article 6: Co-ordination**

- 6.1 The Parties hereby agree to designate one individual each as Co-ordinator, who shall be assigned to OMS and to interface with respect to all aspects of this Agreement.
- 6.2 ESL's Co-ordinator shall be responsible for coordinating and performance of all responsibilities of ESL as well as coordinating with Catalyst's Co-ordinator in the performance of required analysis, design activities, and coordinating and supervising the development and installation of the Software for OMS by Catalyst.
- 6.3 Catalyst's Co-ordinator shall be responsible for coordinating with ESL's Co-ordinator in the performance of all required analysis, activities, and consequently assist Catalyst in fulfilling its roles and responsibilities in the development and installation of the Software.
- 6.4 ESL and Catalyst shall be responsible for all acts and omissions of their respective Co-ordinators.

7. **Article 7: Training**

Post successful deployment of the Software, operational IT related (and other concerned) personnel of ESL and/or CDC will be trained by Catalyst on the Software usage and its applications and features. Such personnel of ESL/CDC shall be trained by Catalyst at its own cost for first time training, and any second and/or additional trainings which may be requested by ESL shall be chargeable at mutually agreed rates. Such training will be conducted in Karachi. ESL however agrees to bear all incidental expenses and professional charges related to the training, which will be communicated to ESL in advance before commencement of training. Catalyst shall however not provide any training to any personnel of TREC Holder, or other clients of ESL and in fact shall not be required to maintain any contact with them.



8. **Article 8: Deliverables**

Catalyst shall make available to ESL the Source Code and all the technical documentation relating (including but not limited to administration manual, software architecture and design document, software deployment document, software upgrade plans etc.) to OMS, complete in all respects as per the requirements mentioned in the Specification Requirement for testing on a date as mutually agreed between the parties. In case of any defects, deficiencies, inaccuracies or shortcomings, ESL shall notify the same to Catalyst, in which event Catalyst will remedy all the defects, deficiencies, inaccuracies and shortcomings within shortest possible period. Upon successful testing and confirmation by ESL, the deliverables shall be deemed to have been completed.

9. **Article 9: Source Code**

9.1 The title to the Source Code to be developed and made available to ESL by Catalyst under the terms of this Agreement shall vest in ESL.

9.2 Notwithstanding the vesting of the exclusive title to the Source Code in ESL, it is specifically agreed and understood that ESL shall not use the Source Code or any other documentation or material provided to ESL by Catalyst for any commercial use or for any other purpose, except for its role as PCM during the currency of this Agreement.

9.3 ESL shall not, under any circumstances, permit any person or entity to have access to the Source Code and/or to make any alterations or amendments thereto during the 5 year Maintenance period as well. However, post the duration of this Agreement, ESL shall be free to engage the services of any other IT professional or company (including its associated/subsidiary company) to make any alterations to the Source Code and/or the Software as may be deemed appropriate by ESL. This would include customising the Software for onward sale, assignment, sub-let or license to any third party upon such terms deemed appropriate by ESL, whether in Pakistan or abroad. The rights contained in this Clause may be exercised directly by ESL or through CDC.

10. **Article 10: Ownership**

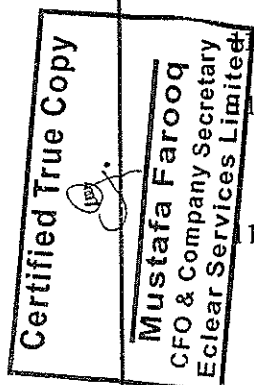
10.1 Catalyst expressly agrees that the ownership rights of the Software and IPR in the Software vest with ESL.

During the 5 year maintenance period when Catalyst shall be exclusively responsible for maintaining and customising the Software, Catalyst shall maintain the IPR of ESL in Software of such features that are developed for CDC/ESL solely for PCM related project. Consequently, such features and components of the Software which have been specifically been developed for the PCM project by Catalyst for ESL shall not be copied, imitated, altered or provided (in any manner whatsoever, including without consideration) by Catalyst to any other party under circumstances whatsoever.

**Article 11: Copyrights, Patents, Deigns, etc:**

11.1 The Software, its name, design, patents and other components and applications provided by Catalyst (including third party software and hardware paid for by ESL and/or CDC) shall be the exclusive property of ESL.

11.2 Catalyst's name, logo (including its layout and design) patents and trademarks are the exclusive property of Catalyst and ESL shall not have any right or authority under this Agreement to use the same.



12. **Article 12: Limitation of Liability**

12.1 Each Party shall be solely and exclusively liable for any losses or damages incurred (as a result of their fault or error) by the other Party. Hence, all liabilities except for the financial liabilities arising out of a fault of Catalyst prior to the UAT to be done by ESL shall be solely on account of and be the responsibility of Catalyst. Similarly, all liabilities arising out of a fault of ESL shall be solely on account of and be the responsibility of ESL. However, it is hereby clarified that ESL/CDC will not be liable for any loss arising to any user of the Software if such liability has arisen due to a fault of such a user. Furthermore, all liability and loss responsibility with the users of the Software shall be commercially agreed by ESL/CDC in separate agreement(s) with such users.

12.2 For any liability or claim or loss incurred or claim made where the fault of the Party (i.e. ESL and/or Catalyst) cannot be ascertained or attributed,

a. Pre-UAT

The resulting liability (except for the financial liability) shall be shared by ESL and Catalyst together.

b. Post UAT and Successful Deployment

The resulting liability shall be on account and shall be sole responsibility of ESL.

13. **Article 13: Term of This Agreement**

13.1 This Agreement shall remain in force for a period of five (5) years commencing from the date on which the deliverables would deemed to have been completed as per the provisions of Article 8 above.

13.2 The expiry of the Agreement shall be subject to the settlement of accounts between the Parties, on the date of effective expiry of the Agreement. ESL shall pay (or cause to be paid) to Catalyst all amounts outstanding in lieu of the revenue sharing arrangement as accrued till the date of expiry within fifteen (15) days of the date of expiry of this Agreement.

14. **Article 14: Force Majeure**

14.1 No delay or failure of performance by either Party of its obligations hereunder shall be deemed to be a breach of or default under this Agreement nor give rise to any claim by the other Party hereto if and so long as such delay or failure is occasioned by or in consequence of any Acts of God; strikes, lockouts, or other labour disputes; wars, blockades, insurrection, civil disturbances, acts of public enemies; riots, epidemics; lightning, earthquake, fires, explosions, storms, heavy rains, floods, landslides, washouts, acts of public enemies, orders or directions of any court or regulatory authorities having jurisdiction; governmental embargoes or enactment, promulgation or enforcement of any prohibitory laws, rules, regulations, and any other cause or circumstances whether of the kind herein enumerated or otherwise which is not within the reasonable control of the Party invoking this Article.

4.2 If any Party is prevented from any of its part of the Agreement due to any elements of force majeure or frustration mentioned above, it shall notify the same to the other Party. Thereafter, both the Parties shall mutually decide upon the via media and the actions to be taken including extensions in the timelines with positive approach. If the situation of force majeure or frustration continues for a period of 180 days at a stretch or intermittently, either Party may terminate this Agreement upon written notice of seven days to the other Party, whereupon both the Parties shall be released for their respective

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CFO & Company Secretary  
Eclear Services Limited



obligations, except for payments to be made by ESL for the work already done by Catalyst in proportion to the total contract price.

**15. Article 15: Default And Termination**

- 15.1 If either Party commits breach of any material provision of this Agreement, the other Party shall give the Party in breach a thirty (30) days' written notice of such termination, specifying the breach and requesting them to cure the breach.
- 15.2 If the Party in breach fails to cure the default within the said thirty (30) days period, the aggrieved party may terminate the Agreement by written notice of seven (7) days and upon expiry of the period of such notice, this Agreement shall stand terminated, unless (i) the Party giving the notice withdraws the notice in writing on being satisfied that the Party in breach is making its best efforts to cure the default and that there are grounds to believe that it will be cured, (ii) the Party in breach rectifies the breach or (iii) Party in breach explains in writing (to the satisfaction of the other Party) that no breach ever occurred. In such eventualities, the notice shall not become effective and this Agreement shall remain in force and effect.
- 15.3 This Agreement may also terminate due to cessation of the PCM project as a consequence of a direction of the SECP and/or if ESL in its sole discretion feels that the PCM project is not commercially viable. In such situations, ESL shall (either directly or through CDC) intimate Catalyst of the cessation of the Agreement in writing and thereafter, both parties shall settle their respective dues within sixty (60) days. It is however, clarified that Catalyst shall only be paid the amount for the work done up to the date of cessation.

**16. Article 16: Confidentiality**

- 16.1 Both Parties shall keep confidential and not disclose, publish, sell, trade or disseminate in any manner to any third party or to any of its employees (except to persons who require access to such confidential information to accomplish the intended purposes of this Agreement) any technical information, data, business or trade secrets, other proprietary information or other similar information provided by either party to the other during the course of this Agreement without written consent from the other party, except where such a disclosure is required by law or by court of competent jurisdiction.
- 16.2 This Article shall also survive the termination of this Agreement indefinitely.

**17. Article 17: Secure Engineering Principles, BCP & IS Compliance**

- 17.1 Catalyst shall ensure that:

- 17.1.1 the architecture of the software must be based upon at least three tier model.
- 17.1.2 all of the underlying software components that are used in the software must be under support of its corresponding vendor and contains no significant vulnerability. Any upgrade whenever required shall be performed on high priority basis.
- 17.1.3 no third party software component is used in the software without formal risk assessment activity and approval from CDC/ESL.
- 17.1.4 any change shall not be deployed on production without explicit approval from CDC/ESL team and its successful UAT by ESL team. Before deploying any change on UAT, the vendor must ensure that it's properly tested by the vendor's QA team. The change shall be promoted in accordance with the change management procedure of CDC/ESL Application development.

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- 17.1.5 in case if any significant vulnerability exists in the overall software and its components, it must be fixed on high priority basis.
- 17.1.6 the availability of key personnel for carrying out the services. In case, the key personnel resigns then Catalyst shall ensure a similar replacement who is acceptable to CDC/ESL so that the performance of services is not affected.
- 17.1.7 proper security measures are followed to ascertain that no virus, malware etc. is introduced over CDC/ESL systems that can cause loss or corruption or damage to any system, program or data.
- 17.1.8 all security audits and other procedural requirements of CDC/ESL are complied with. Catalyst system shall comply with applicable laws and standards related to information security, information protection and cyber security.
- 17.1.9 in case of any incident whenever reported by CDC/ESL team shall be rectified as per the defined business urgency. The rectification shall be done within the stipulated timeframe enabling CDC/ESL to meet its operational and regulatory obligations. Any issue marked as 'Critical' must be resolved within 15 minutes. Catalyst shall ensure deputation of appropriate expert/skilled staff/s to troubleshoot and rectify the reported issues on urgent basis.
- 17.1.10 provision of technical documents required by CDC/ESL for its software. Catalyst team shall provide detailed technical training of its software code, data structures etc. to CDC/ESL team.
- 17.1.11 all measures to prevent unauthorized access to CDC/ESL systems, software and data, the prevention of introduction of viruses, malwares, torjans, etc. are implemented. Catalyst shall also provide the documented capability required to restore the systems, software or data. Catalyst shall not, without the consent of CDC, be entitled to delete or modify any data or software component to which Catalyst has access in performance of its obligations and shall take all necessary precautions to prevent any loss, theft, corruption of data or software.
- 17.1.12 development and the related activities to be carried out in line with the procedures of CDC/ESL. Catalyst shall ensure backups are taken before making any changes in software or data. The development related activities shall be in line with the architecture and security guidelines of CDC/ESL. The aforementioned guidelines are updated on regular basis and Catalyst shall ensure that the software complies to the latest provided guidelines.
- 17.1.13 all integrations of the software with internal and external systems are in accordance with CDC/ESL standards and guidelines.
- 17.1.14 Catalyst provided software shall meet all requirements related to scalability, performance and availability. The details whenever updated shall be provided to Catalyst for necessary compliance.
- 17.1.15 Catalyst key personnel shall remain available and participate during BCP drills and actual call of BCP.
- 17.1.16 replacement of the software code is provided in case its accidentally damage.

18. **Article 18: Miscellaneous**

- 18.1 ESL, at its own discretion, shall conduct internal / third party security review (including but not limited to penetration testing) of the software product. Catalyst shall be required to perform rectification of highlighted issues, if any, in the said process. Any gaps identified by ESL during the testing phase w.r.t software design shall also be rectified by Catalyst.
- 18.2 Catalyst shall limit their services to those services expressly set forth herein and related thereto. Moreover, Catalyst shall not be responsible or liable to ensure operational link is

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CFO & Company Secretary  
Eclear Services Limited



established between TREC Holder and other participants and/or other clients/users of the Software with the system of ESL.

- 18.3 Any and all work required to be done by the TREC Holder participants or any other client/users of the Software shall be beyond the scope of Catalyst.
- 18.4 No waiver of any right(s) under this Agreement shall be deemed effective unless executed in writing and signed by an authorized representative of the Party charged with such waiver.
- 18.5 Neither Party shall assign or transfer their rights, obligations or interests, or delegate any responsibility under this Agreement without the other Party's prior written consent. In case such consent is given, the assigning Party shall be personally responsible for fulfilling all its obligations and be subject to all the terms and conditions as contained in this Agreement. The assigning Party shall further cause the assignee to sign a fresh agreement with the other Party on the same terms and conditions as contained in this Agreement PROVIDED THAT there shall be no further action or steps required if ESL desires to transfer any of its rights, benefits or obligations to CDC till such time that ESL remains the subsidiary of CDC.
- 18.6 From the date of execution of this Agreement, both Parties shall not directly or indirectly approach, negotiate or in any manner discuss the development, implementation or deployment of any software which is used for the same purpose or is similar in nature to the Software to be developed under this Agreement, with any other software developer or software house or company which intends to operate as a PCM. ESL also hereby agrees not to directly or indirectly develop, create, experiment or fabricate any software which is used for the same purpose or is similar in nature to the Software forming subject matter of this Agreement, internally or through outside sources during the currency of this Agreement.
- 18.7 ESL agrees that during the subsistence of this Agreement and for a period of three years following the termination or expiry of its relationship with Catalyst for any reason, it shall not directly or indirectly solicit, induce, recruit or encourage any of Catalyst's employees to terminate their relationship with Catalyst, or attempt to employ any of the foregoing, either for itself or any other person or entity.
- 18.8 If any provision or condition of this Agreement shall be held to be invalid or unenforceable by any court, or regulatory or self-regulatory agency or body, such invalidity or unenforceability shall attach only to such provision or condition. The validity of the remaining provisions and conditions shall not be affected thereby and this Agreement shall be carried out as if any such invalid or unenforceable provision or condition were not contained herein unless the gravity of the condition is such that it makes it impossible or impracticable for any Party to continue with this Agreement.
- 18.9 This Agreement constitutes the entire understanding between the Parties in relation to the subject matter hereof and supersedes any and/or all other agreements and representations made earlier by the Parties, whether oral or in writing. This Agreement is executed in duplicate, which the Parties have taken one (1) each, and each of the duplicates so executed shall, for all intents and purposes, be deemed an original and shall constitute one and the same agreement.

#### **Article 19: Governing Law and Jurisdiction**

This Agreement is governed by the laws of the Islamic Republic of Pakistan and subject to the arbitration provision contained in Article 19 hereafter, the courts in Karachi alone shall have the exclusive jurisdiction in this matter.

Certified True Copy

Mustafa Farooq  
CFO & Company Secretary  
Eclear Services Limited



20. **Article 20: Dispute Resolution**

- 20.1 The Parties shall attempt to resolve any disputes or defences relating to this Agreement amicably and in good faith through discussions among their representatives or in case of failure to resolve issues amicably, then through arbitration.
- 20.2 All disputes, differences and controversies that cannot be resolved amicably, including as to the respective rights and obligations of the Parties, as well as the interpretation of the terms and conditions of this Agreement, shall be referred to arbitration by two arbitrators, one to be appointed by each Party and in the event of lack of consensus between the two arbitrators, the matter shall be referred to an umpire to be selected by the two arbitrators before commencement of the reference. The award given by the two arbitrators jointly or by the umpire, as the case may be shall be final and binding upon both the Parties. The Arbitration shall be held at Karachi accordance with the Arbitration Act, 1940 or any re-enactment thereof.
- 20.3 The arbitration fee shall be equally shared by both the Parties. The arbitrators shall not have the power to award or assess punitive damages against either party. Both Parties agree that the award passed by the arbitrator(s) shall be kept confidential from public, competitors, customers, agents and representatives, except to the extent of disclosure required to be made in order to enforce the arbitration award.

21. **Article 21: Notices**

All notices and other communications shall be given in writing by registered mail acknowledgment due, or by courier service or by fax or e-mail confirmed simultaneously by courier or registered mail, acknowledgment due and shall be addressed:—

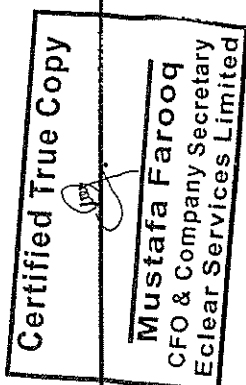
**If to the Catalyst**

Attn: Mr. Humayun Jawaaid Syed  
 Address: 403, 4th Floor, Al-Rehman Center,  
 KCHS Block 7/8, Shahra-e-Faisal,  
 Karachi  
 Fax No. +92-21-3455-4986  
 E-mail: humayun.syed@catalyst.pk

**If to ESL:**

Attn: Mr. Shariq Naseem  
 Address: CDC House, 99-B, Block –“B”,  
 S.M.C.H.S., Main Shahra-e-Faisal,  
 Karachi  
 Fax No. 021-34326036  
 E-mail: shariq\_naseem@eclear.com.pk

Or to such other addresses as the Parties may from time to time notify in writing.



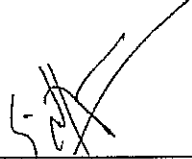
IN WITNESS WHEREOF THE PARTIES HERETO HAVE EXECUTED THIS AGREEMENT AS OF THE DATE FIRST ABOVE WRITTEN.

For and on behalf of  
EClear Services Limited

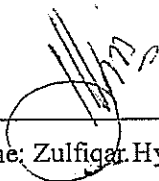
For and on behalf of  
Catalyst IT Solutions (Private) Limited

  
Name: Shariq Naseem  
Designation: Chief Executive Officer  
CNIC No. 42201-3153538-5



  
Name: Humayun Jawaid Syed  
Designation: CEO & Director  
CNIC No. 42101-1940405-5

WITNESSES:

1.   
Name: Zulfiqar Hyder Khan  
CNIC No. 42000-0575216-5  
Address: CDC House, 99-B, Block B  
S.M.C.H.S Sharah-e-Faisal Karachi

2.   
Name: Syed Munjir Haider  
CNIC No. 42000-0934179-5  
Address: Office # 403 4th  
Floor, Al-Rehman Center Sharah-e-Faisal, Karachi. 75350

Certified True Copy



**Mustafa Farooq**  
CFO & Company Secretary  
EClear Services Limited